

S V Krishnamurthy S/O S V Venkataramaiah vs S V Venkatesha Murthy S/O S V ... on 30 March, 2010

Bench: N.Kumar, K.Govindarajulu

. AMAqc*aR, *

IN THE HIGH COURT OF KARNATAKA AT BANGALQRE

DATED THIS THE 30th DAY OF MARCH 2f3~1of; "

PRESENT

THE HONBLE MR JUSTICE 4' S 1: '

THE HON'BLE MR JUSTICE: 'GOVIVND'ARAJ'ULU
REGULAR FIRST A_P\$EV2Xi;._9 52«/Z00SAA

BETWEEN:

1. SRI SvKR}S1«m}xMtjRTRY A
S /0 SRI S V %
MAJOR, ' V'

R/OV',f"NAGAfR _
PANDAVAPURA; A A A

2. SR} S
S/O SR1 S V V'ENI:ATARAMAIAH

"R/O'*JV'S:§J.A'GAR
'- PANL3AVA'RI_;RA.. _

3.4 -- SMT VVi3fi;%I2\$fiNJAI;.}\KSI-IMI
W/Q.4_SRI.-RAJESH

g D /0 S VENKATARAMAIAH
~ 'C/0 SRLRAIVIA FURNITURES
J ..f0PP'SREE TALKIES
= * _ MA1\n:>I MOHALLA

4. SMT PADMA

W/O SR1 LOKESH

13 /0 S V VENKATARAMAIA}-I
MAJOR

R/O KUTCHANAHALLI

K R PET TALUK.

5. SMT NETRAVATHI

w/o SR1 SRINIVAS -

D/O S V VENKATARAMALAH-A

MAJOR _

R/O SEELANERE

K R PET TALUK.

6. SMT PUTTAMMA .

W/OSVVENKATARA1\[/[AL4\I€I'» _ ' '

MAJOR : I - '

R/OVVNAGAR . R S V

PANDAVAPURA-. "V_ > LJXPPELLANTS

[BY SR1 M [f<Ao', 'iS%ADV0cATE)

AND: . 7 3 S _

1. SR1 S V--X7ENKATES%i;AAMi\$F:lTHY

S,/o SRIV_»€;--.:V:\:fENKA'1'ARAMAIAH

R/Q KR ..

"

MDCC B'ANKS__"'

_ _fJ?AI€I)AVAPIJR.A RS.

SUB ;15QST MASTER

* I PS_SK"'LTDj, POST OFFICE

F" iPA1\j\$DAvA:PURA R.S.

;. p0.SseSSi"011. ~ . ' _

4. THE MANAGER

PSSK EMPLOYEES c0--OP

BANK LTD., p

PANDAVAPURA R.S. .. RESPONDENTSI-_

[BY SR1 V D GANIGER, ADV.FOR C/R1)

THIS APPEAL IS FILED UNDER SEOTION96 OF» S

CPC AGAINST THE JUDGMENT AND 4DECR'£<3E.fvDATE.D '

6.6.2003 PASSED IN OS NO.S9,~f97 ON " }TpI-I*E3'I}3_'lL.uE,V_ '()'VIj'p_ ;
THE -PRL.CIVIL JUDGE, S'R.D__N:' 8;" I,pJNI»P'C.L.;PIe-ID
SRIRANGAPATNA DISMISSING THE SUIT_pPARTITION~

AND SEPARATE POSSESSION;

THIS APPEAL cOMINGpIOVN.P'IOVR THIS
DAY, N KUMAR J, DELIVERED THE' FOLLOWING:

This Vagainst the judgment
and deefee which has dismissed the

Suit {Of _ the .,V};A)Iai.flttiffS f0l' partition and Separate

' 2. VF0E-j:}ie purpose Of convenience, the parties are

'r.eferred,L_0 as they are referred to in the Original suit.

1/,

3. Sri S V Venkataramaiah had two wives Smt
Nacharamma and Smt Puttarnma. First wife

Nacharama died leaving behind a son S V Venkatesh

Murthy who is the 18* defendant. Plaintiffs _

the Children of ISL plaintiff "

Venkataramaiah. S V Venkataraniiali
intestate leaving behind '-
to succeed to the schedule plaintiffs
came to know that has been

nominated by _late.._S to receive the

arnountlvnilentilinediln l..lsehedule by Virtue of the
norninati'e«n." p "will not get absolute right

over the aschediilelwlproperties and the plaintiffs

fs'hai"es coinemto the 1st defendant. Plaintiffs are

Ihalviiigf in the plaint "A" and "B" schedule

_ properties' 1st defendant is having 1/ 7th share. 13*

vifiefendaiitl is making attempts to draw the amount and

is not willing to give the plaintiffs their legitimate

share out of court. Therefore, plaintiffs sought for

partition by metes and bounds and separate possession
of their 6/7th share in the "A" and "B" schedule

properties and a direction to the IS' defendant to render

accounts in respect of "A" schedule properties ~~~~ a _ ; ; . d _ ' ' t ' o _ _ "

ascertain the value of plaintiffs 6/ 7th share. in " f

profits from the date of the :=, Asuit. llzt~ill

possession. "A" schedules properties consists"
properties and a house. are
Fixed Deposits, Savings" Post Office
Accounts etc., in other ll

4. "After per se: fie {ev. of '*=s: iir: imons, 15* defendant filed a

detailed written statement contesting the claim. It was

la" 'He denied that his father had two

that plaintiffs 1 to 6 are strangers

_ to the fa. j l ? n i l f i l ' of deceased S V Venkataramaiah and 1st

Plaintiff No.1 is not the legally wedded Wife

l _ l _ j _ . 0 l f V Venkataramaiah ~~~ father of IS' defendant.

1%/t

When plaintiff no.1 is not the legally wedded wife of
deceased S V Venkataramaiah, plaintiffs 2 to 6 as

children of plaintiff no.1 through S V Venkataramaiah _

does not arise at all. During the life _

Venkataramaiah, he has nominated" him to "1'e: c _ e i i / ' e the "

amount mentioned in the "B" schedule j l ' e i . p r o » p e r t i ' e s f i ' - I : I é i . e _ '

has an absolute right over the

Therefore, plaintiffs 1 to 6 have. question the

same. "B" schedule of family and co-

parcenary property of; 'AVS': ' V: e'ri: t1~: . atara1.: ifi'1'aiah and 1st

defendant who died on 7.6.1997 intestate
leaving behind as the only son of deceased

S V Venkataramaiah deceased Nachamma.. On

death deceased S V Venkataramaiah. Is'

plaintiff has some documents mentioned in the

property from the house of deceased

Tiufairikatararriaiah without the knowledge of first

Plaintiffs have not come to the Court with

k/.

clean hands. Therefore, they are not entitled to any

share. Suit items 'a, b and c' of "A" schedule

inamthi lands. Deceased S V *

defendant no.1 are the archaks of the. if

and Thirumala Devaru Gods and

the said temples, lands the
Special Tahsildar of "favour of
deceased S V Venkataramaiah said S V
Venkataramaiah}; to the
Government. tahsildar has granted
occupation to the deceased S V
Venkataramaiah. V'. entatlararnaiah was residing at

Pandavapura Colony and therefore, to perform the

V. 'pooja above mentioned temple Gods, the Khata of

has been changed into the name of S V

_ Venkatesh - the first defendant who is residing

Seelanere Village. Therefore, S V Venkataramaiah

S and the 1st defendant were in joint possession and they

* "Were co--parceners. Therefore, "A" and "B" schedule
V.

properties are the joint family properties and __CO--
parcenary properties. Plaintiffs 1 to 6 are not at
joint family of the deceased Venkataramaiah V'
defendant and they are not co--parceners.
are not entitled to any share. V

5. After the 1st
defendant is the sole 'A' and 'B' schedule and
therefore, he is entitled to the share of the
"A" mentioned property is
not an The suit is not
maintainable "sought for dismissal of the
suit. ; ' ~

:::'C):n'4étizepjaforesaid pleadings, the trial Court has
framed six issues which are as follows:
is

10. The learned counsel for plaintiffs assailing the
judgment and decree of the Trial Court contended
place, the second wife was married after the death of the first
Wife and therefore the finding recorded by the Trial Court is
second marriage took place during the lifetime of the first wife.
marriage is illegal. Secondly contended "event".

otherwise admittedly plaintiffs 2, 3, 4, 5 and 6 are the children of the first
plaintiff born through If the first
marriage of Venkataramaiah was hit by Section
5 of the Hindu Marriage Act, 1955, the children born to them out of
the second marriage would become illegitimate
Children Hindu Marriage Act, 1955
they would be entitled to share in their father's share in
with the legitimate children and

therefore 'Court has Committed an error in dismissing
suit-..._for_p~art..ition denying the share to plaintiffs 2 to 6.
":\$'l'Al1_ii'dlygit contended that with regard to the deposits in
thel'b.alii«r.s: and post: offices, the name of the first defendant is
if as the nominee. That. would in any way affect the
EL//..

rights of the plaintiffs 2 to 6. as they would be entitled to
equal share with the first defendant, the ri0lr1illat.ion only
says the hands to which it is to be paid and not determine

rights of the parties to the said amount.

11. Per contra, the learned c0urlselMf01* th'e"1*espei'rdent .4
sought to support the impugned judgme'nt a'rld:'deCree:\$"

12. In the light of the facts at_lti-usubiiiiissionsirfiade," the
point that arise for our <:0nsi<le1"ati0r1___isT'~.~__

i) Whether the first" 'pllai.litiff{.,lv.qa.s*ltl,'t:3:al:ried after the
deathly marriage took piace
dtllitifig ' «of the first marriage?

ii} E3-V.er1 't'ii*'stA"plairltiEt's marriage is void, when

lfllllalihtiffs 2 to 6 are born to her out of

with Sri S.V.Ve-nkatarainaiah, they

A*-..l)eihglilteaitimate ch.ildreil are entitled to share in

AA _ 1 property of their father Sri

in

V' E5 .V.Venkat:ai'aIn aiah'?

cordial relationship between him and her, he married the first
plaintiff on 7.6.1960. The contention of the first plaintiff that
he married her after the death of first Wife is not correct.
Because she was not the legally wedded Wife. she was denied

the maintenance. In these proceedings, no
produced to disprove the said facts. In those V~
the Trial Court was justified in
married Sri Venkataramaiah, father of
during the subsistence of thief"mrrriarriage mSmt
Nacharamrna and therefore arigr share in

the properties" left elil_{ataramaiah.
POINT No.2 A a i

14. The e*.r4i_dle'nc"e _ = and even the findings
recorded "frial clearly shows that the plaintiffs 2

to S.Vfl/enkataramaiah through the first

:*"'vrplaintiff'.-- finite'hvasvu--recVoh19ded a categorical finding that they were
_l'o_orri.Von accountvlof the wedlock to Sri S.V.Venkataramaiah

lw.SrntilflP.uttamma. Unfortunately after recording such a
t/

finding, it did not properly appreciate the legal position
insofar as the rights of these unfortuniate illegitimate
children. Section 16 of the Hindu Marriage Act deals with

legitimacy of children of void and voidable marriages. Sec.ti'or1

16(1) declares that notwithstanding that. a marriage-.isV»:n_L{lil1"

and void under Section 11, any child of such
would have been legitimate if the
shall be legitimate. whether such Ci'li1_d isAl'bo'l*'n
the commencement of the Act,
1976 and whether or not is granted in

respect of that and whether or not
the marriage held than on a petition
under this _Act. HS!i:b~s.e'(:tiori"l2] makes a declaration that

l'egitiniatevchildrenlshall be deemed to be the legitimate
childrenllleven"decree of nullity has been passed dissolving
niarriage._>1t:\$isl subwsection (3) which confers rights of
'ieglitimate:'children in the property. It confers equal
property of the parents along with the legitimate

This Court had an occasion to consider the
u'//.

I6

aforesaid provision in the light of a series of judgments
rendered by the Apex Court as well as this Court: and .vit_:VWt1sV
held as under in the ease of SR1

K.B.KRISHNAPPA AND OTHERS, reported 'M2993

KAR 3453:

"23. Therejore. it follows th'af;ogSectio_n'1b'l

Act contains a legal fiction. rule
jaris' that the legisVioti.*.re "provided that,
children though illegitiminate n.eoe'rt_he_iess, be
treated as leg'i'ti:nfiate that the
marriage ill-Ioul;lever, it is a
legal fiction :lirrii't:ation." reason behind
such .tjhe_ fictrliarrrtent had no
intention' :l"set::led concepts of Hindu
Law such copar':cer=:Varyl;lll coparcener, coparcenary

A_ propejiftgg"joiritjanjiilg. and joint family property,
oJf'_ficopa}'eerier to acquire by birth and interest
or joint family property under
Therefore, the object sought to be
'v._gacttieoed'«;bg this provision is two fold. Firstly the
it V' restoration of status. For the act of the parents over
the innocent child had no control. and for no

Qfit, had to sttjfer a permanent set back in life

M"

and being called a bastard, an illegitimate child.
This social evil was wiped out. For all practical.
purposes the child was treated as a legitimate

born out of a lawful wedlock. Secondly, the it

for such a status of affair was~~>their l

Therefore, in the properties of p_gare'nts.._leqial"V:-.,,___

rights are given to such children, lasy'that'
children born of lawful wedloclagllfler achieu'ing
twin object, the Parliament to see..that
conferment of status and on the
illegitimate child did novt.winilade--.triwe {of others.
who are also%_ " 'l-aresin no way
responsible 3 Thus, the
illegitimaterv {1} or (2) of
Sectionh:._A16'ojl; on conferment of
legitimacy, not":wallou.=.ed"".by law to claim equal

status under Hindu as that of a legitimate

houghllllby' ----- the aforesaid provision the

ill.egitim.qtei has been conferred the status of a

it did not confer the status of a

coparcer__ie'r..v Consequently, such a child did not

ll."~'___l'-acquiregyny right by birth in any property much

v~:lfless""c.oparceriary or 'joint family property. In the

light of the express words used. in the provision

"which clearly sets out the legislative intent, in

particular subsection (3) ofSectton 16, any attempt

on the part of the Courts to expand the scope of the

said provision, and confer rights on such child in
coparcenary or joint jamily property amounts to
relegtslatng on the subject. under the guise
interpretation. against the will of the Parttarrqe--:1't'uw:'__l__"I'
clearly expressed in the enactment itself.

impermissible." .

Therefore though the plaintiffs 2 to ar_ee~

children, now the law confers the stams of'iegltlrIl'arte\$eh1l_.dre11

on them, and therefore they are entitled to equal share as

legitimate child of the deceased. The plaintiff's father.
15. In the written statement, the plaintiffs have not stated
the nature of the property. All that has been said

is that the property belongs to Sri Venkataramaiah who died

they succeed to the property and they

entitled to equal share. The defendants in the written

statement have stated that all the properties are

properties and he being a sole surviving person.

it is

19

after the death of his father is entitled to the entire property

In fact, A schedule properties, the evidence discloses that

they are ancestral lands. They were enjoyed by

Venkataramaiah by virtue of the fact that he was

an Archak. After the death of Sri Venkataramaiah, the

continued as the Archak of the Anjaneya

the said lands have been regranted to him, it

partakes the character of ancestral property. It is not the
self-acquisition of the first owner. The said land, if

notional partition had taken place, the father Sri

Venkataramaiah allotted 1/2 share. Therefore

in that case children and illegitimate

children take the property in equal shares and the property

divides in accordance with the Hindu Succession Act. In

other 3/4 share of A Schedule property, plaintiffs

6 and the defendant would get equal share i.e. 1/4

1 But entire property, the plaintiffs 2 to 6 would

S V Krishnamurthy S/O S V Venkataramaiah vs S V Venkatesha Murthy S/O S V ... on 30 March, 2010
ga l._l/lV_.'V2;t?* share individually or 5/12"-1 share Collectively and
share of the first defendant would be 7/ 12.

POINT No.3

16. Insofar 8 schedule property is (:ollc:erIle.(i;;they"V.

are all deposits in the banks and -post offices._

dispute those deposits stood in

Venkataramaiah. He has narnedV.ft.h_e first defendan.tV as

nominee. It is by virtue of first
defendant is claiming the the absolute
owner. 'i'he1"efore it iS.~!.1€C€S:S8i'_' ;7. to is the effect
of nomination would confer

absolute titleVonvth'effio:n_iilee';' "

'17. The uA~pçx case of SMT.SARABATI
DEVI 8: AN}! v. s'IwI:f.Us-HA Iievx, reported in AIR 1934 sc
lies lj~5ilC]?f'gtS f;iA.T'1fid€I'2'VH lllll

made under Section 39 of the
InSarVarlc=e'Zlctij 1938 does not have the ejfect of
ecoyymuéig on the nominee any beneficial interest in
:j..t'heia;noVarli payable under the life insurance policy
_' mane death of the accused. The nomination only

.,.ffidic:ates the hand which is authorised to receive

the amount, on the payment of which the insurer
gets a valid discharge of its liability under the
policy. The amount, however, can be claimed by
the heirs of the assured in accordance with the law

ofsaccession governing them. "

In the instant case, the law of succession, which _

parties is Hindu Succession Act, T~l"1<:=-l

children and illegitimate children get>.,4equal' ltiifidei::,e_*l

Section 16(2) of the Hindu Marriage Act.» it Bec'€llls.ev«-.of, the
nomination, the first defendant igsfleintitled .to«Jrecet\$ve the

money from the bank and he gives a

discharge Le. Valiltifgd, is 'chaijge___ as far as those ' financial institutions are concerned\$' because he was shown as a nominee that would not entitle him to claim entire property

hil.:{'l}5el1lf'_w_fl11 of the matter, in the 'B' schedule

T"»g»propertyl'al,l Vol5ll"_t.heni"V..are entitled to equal share i.e. 1/6"

'7,s.ha.*;"e.

we pass the following order:

ii/

ORDER

The appeal is allowed. The judgment and decree of the Trial Court is hereby set aside. The judgment and dismissing the suit insofar as the first plaintiff is concerned ~ affirmed. The plaintiffs 2 to 6 would be entitled to share in the 'A' schedule property and the first plaintiff is entitled to 7/12 share. Insofar the plaintiffs 2 to 6 and the first plaintiff are entitled to 1/8 share each.

share each.